

24STCV28296 24STCV28296

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-09-15
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Case Number: 24STCV28296 Hearing Date: September 15, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

WILLIAM LEO JACKSON,

Plaintiff,

vs.

LOS ANGELES COUNTY SHERIFFS MEN CENTRAL JAIL,
et al.,

Defendant.

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CASE NO.: 24STCV28296

[TENTATIVE] ORDER DENYING MOTION TO VACATE
ORDER; DENYING MOTION FOR LEAVE TO AMEND; RESCHEDULING ORDER TO SHOW CAUSE

Dept. 506

8:30 a.m.

September 15, 2026

On August 22, 2025, Plaintiff
William Leo Jackson filed a first amended complaint ("FAC") against Defendants Los
Angeles County Sheriffs Men Central Jail, Robert Luna in his Capacity of Sheriff
of Los Angeles County Sheriff's Department and Facilities Only, and Sheriff Deputy
Adam Kennedy.

On
September 22, 2025, Defendants Los Angeles County Sheriffs Men Central Jail and
Robert Luna in his Capacity of Sheriff of Los Angeles County Sheriff's Department
and Facilities Only filed a demurrer to the FAC. The Court sustained the demurrer on April 16,
2026 and dismissed those Defendants.

On
August 6, 2026, Plaintiff filed a Motion to Vacate April 16, 2026 Order and Direct
Request for Leave to Amend.

On
August 13, 2026, Plaintiff filed a Motion for Order for Leave to File Second Amended

Complaint.

MOTION
TO VACATE ORDER

Plaintiff

seeks relief “under the equitable doctrines of extrinsic mistake and extrinsic fraud.” (Motion at p. 2.) Plaintiff summarizes some of his allegations and claims, but he provides no argument or legal authority for vacating the Court’s demurrer order and dismissal of certain Defendants. (Id. at pp. 2-3.)

The
motion to vacate is DENIED.

MOTION
TO AMEND

The

Court may, in its discretion and after notice to the adverse party, allow an amendment to any pleading. (Code Civ. Proc., § 473, subd. (a)(1).) A motion to amend a pleading must include a copy of the proposed amendment or amended pleading which must be serially numbered to differentiate it from previous pleadings or amendments and must state what allegations in the previous pleading are proposed to be deleted or added, if any, and where, by page, paragraph, and line number, the allegations are located. (California Rules of Court, rule 3.1324(a).) The motion shall also be accompanied by a declaration attesting to the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and why the request for amendment was not made earlier. (California Rules of Court, rule 3.1324(b).)

Plaintiff’s

motion does not comply with these requirements.

Instead, it appears to solely be a proposed second amended complaint. It includes allegations and defendants that were already dismissed, with prejudice, via demurrer.

The
motion to amend is DENIED.

ORDER

TO SHOW CAUSE

The

Order to Show Cause Re: Dismissal for Failure to Prosecute the Case as to
Defendant Sheriff Deputy Adam Kennedy (scheduled for October 15, 2026 at 8:30
a.m.) is CONTINUED to November 10, 2026 at 8:30 a.m.

Clerk

to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at SMCDEPT506@lacourt.ca.gov
indicating intention to submit. If all parties
in the case submit on the tentative ruling, no appearances before the Court are
required unless a companion hearing (for example, a Case Management Conference)
is also on calendar.

Dated this 15th day of September 2026

Hon. Thomas D. Long

Judge of the Superior
Court